

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Matthew Chaves	Team: Squad #16	CCRB Case #: 202106581	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Monday, 01/25/2021 11:04 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 7/25/2022	Precinct: 67		
Date/Time CV Reported Fri, 10/29/2021 4:28 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 10/29/2021 4:28 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. PO Joseph Rosario	18387	966819	067 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Khaled Algahiem	03001	964369	063 PCT
2. PO William Hernandez	15338	967547	067 PCT
3. PO Sean Monaghan	12667	967613	067 PCT
4. PO Anabell Perez	01099	964700	067 PCT
5. PO Francesca Lovetro	03677	969181	067 PCT
6. PO Joseph Rivera	27426	951150	067 PCT
7. SGT Narine Ramlochan	05284	941118	090 PCT
8. SGT Richard Ocasio	05258	949408	067 PCT
9. LT Mark Riyanto	00000	949552	067 PCT
10. PO Jahayra Jimenez	18022	966644	067 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Joseph Rosario	Off. Language: Police Officer Joseph Rosario made offensive remarks to § 87(2)(b)	A . Substantiated
B . PO Joseph Rosario	Discourtesy: Police Officer Joseph Rosario was discourteous to § 87(2)(b)	B . Substantiated
C . PO Joseph Rosario	Abuse: Police Officer Joseph Rosario threatened to damage § 87(2)(b) property.	C . Exonerated
D . Officers	Abuse: Officers forcibly removed § 87(2)(b) to the hospital.	D . Exonerated

Case Summary

On October 28, 2021, SI Chaves called and spoke to § 87(2)(b) as part of contact attempts for CCRB case number § 87(2)(b). In response to questions about that complaint, § 87(2)(b) made new FADO allegations (subsequently encompassed by this new complaint number).

At approximately 11:04 AM on January 25, 2021, social workers arrived outside § 87(2)(b) home, located at § 87(2)(b) in Brooklyn. The social workers had intended to perform a program intake visit with § 87(2)(b) but refused to enter the apartment after learning from one of § 87(2)(b) roommates that § 87(2)(b) had previously been violent. One of the social workers called 911, prompting a radio run to local patrol officers reporting an emotionally disturbed person (EDP) with a knife.

Numerous officers (all assigned to the 67th Precinct) responded to the incident, including PO Joseph Rosario. PO Rosario wore a decorative “morale patch” on the front of his ballistic vest that read “dafuq usain” in faux-Arabic letters (**Allegation A: Offensive Language: Other Substantiated, Allegation B: Discourtesy: Other Substantiated**).

Officers entered the apartment and approached § 87(2)(b) locked bedroom door. PO Rosario told § 87(2)(b) that if she did not open the door herself, officers would have to break it open (**Allegation C: Abuse of Authority: Threat to damage/seize property: Exonerated**). § 87(2)(b) eventually opened the door, and officers immediately handcuffed her and escorted her to an ambulance for psychological evaluation (**Allegation D: Abuse of Authority: Forcible removal to hospital: Exonerated**).

The investigation obtained BWC videos from PO Rosario (**Board Review 01 and 02**), PO Khaled Algahiem (**Board Review 03 and 04**), PO Anabell Perez (**Board Review 05**), PO Francesca Lovetro (**Board Review 06**), PO Sean Monaghan (**Board Review 07 and 08**), PO William Hernandez (**Board Review 09 and 10**), PO Joseph Rivera (**Board Review 11**), Sgt. Narine Ramlochan (**Board Review 12**), Sgt. Richard Ocasio (**Board Review 13**), Lt. Mark Riyanto (**Board Review 14**), and PO Jahayra Jimenez (**Board Review 15**).

Findings and Recommendations

Allegation A – Offensive Language: Other Police Officer Joseph Rosario made offensive remarks to § 87(2)(b)

Allegation B – Discourtesy: Word: Police Officer Joseph Rosario was discourteous to § 87(2)(b)

§ 87(2)(b) provided a sworn statement on October 28, 2021 (**Board Review 16**). While her statement contained FADO allegations, she did not say anything about PO Rosario’s patches (see below). PO Rosario was interviewed on March 22, 2022 (**Board Review 17**).

At 0:23 in PO Algahiem’s second BWC video (**Board Review 04**), PO Rosario’s chest and stomach are clearly visible. In addition to his NYPD-issued equipment, PO Rosario wore four decorative morale patches on the front of his ballistic vest. Three of

them are based on characters from *The Simpsons*, while the fourth reads “dafuq usain” in faux-Arabic lettering. The CCRB found identical patches for sale on an online store to confirm the patches’ content (see IA #40). Still images of each patch have been marked for Board review (IA #41, **Board Review 18**).

In his interview, PO Rosario said that he was familiar with the term “morale patch” but did not recall wearing any morale patches on his uniform or ballistic vest during this incident. He acknowledged owning such patches, including one that says “dafuq usain,” but was not sure if he was wearing it during this incident. The CCRB played PO Algaheim’s second BWC video from 0:21 to 0:23 and PO Rosario confirmed that it was his torso and patch in the video. The patch was not from the NYPD and PO Rosario had obtained it himself. When asked what it meant, PO Rosario said, “It’s a morale patch, a funny patch.” When asked if the patch contained the word “fuck,” PO Rosario said, “Depends on how you’re reading it, it has “fuq” ...even people who read Arabic think it’s Arabic.” PO Rosario does not read Arabic himself but was deployed in the military to an Arabic-speaking area. PO Rosario confirmed that the patch is designed to resemble Arabic writing. PO Rosario had no further statement regarding the patch except to describe it as something humorous that people could see and enjoy.

Under NYPD Patrol Guide Procedure 204-01, officers must not modify prescribed uniforms in any manner except as specifically authorized by higher authority (**Board Review 19**). Under NYPD Administrative Guide Procedure 304-06, officers must not use discourteous or disrespectful remarks regarding another person’s ethnicity, race, or religion (**Board Review 20**).

§ 87(2)(g)

PO Rosario himself acknowledged, the patch’s spelling and lettering is an intentional parody of a real, non-English alphabet and language (Arabic) that is widely spoken around the world and in New York City. The patch is personal property, and not NYPD-issued, § 87(2)(g)

it is therefore recommended that **Allegations A and B** be **substantiated**.

Allegation C – Abuse of Authority: Police Officer Joseph Rosario threatened to damage § 87(2)(b) property.

Allegation D – Abuse of Authority: Officers forcibly removed § 87(2)(b) to the hospital.

As documented in the 911 call audio (**Board Review 21**) and EVENT log (**Board Review 22**), this incident started when a social worker called 911 and told the operator that they did not feel safe entering § 87(2)(b) residence. The social worker initially reported she was doing an intake visit and that § 87(2)(b) was paranoid, hallucinating non-existent people, and attacking her roommate. The social worker described § 87(2)(b) as violent and said that she had both attacked her roommate with a knife the day prior and once (on an unspecified date) grabbed a police officer’s gun. Based on these statements, the 911 operator created an EVENT notification that read “EDP HAS A KNIFE AND THROWING BLEACH AROUND.”

The available BWC videos best document what happened when officers arrived on-

scene. As shown in the first of his own videos (**Board Review 01**) and numerous other officers', PO Rosario approached this incident carrying a plexiglass riot shield. PO Rosario and other officers (including PO Perez and PO Algahiem) spent several minutes speaking to the social worker and one of § 87(2)(b) roommate in the apartment hallway and living room. The civilians provided unclear and uncertain information to the officers regarding § 87(2)(b) location, emergency history, and recent behavior. The officers eventually determined that while no one had seen § 87(2)(b) with a knife or other weapon that day, none of the civilians could say or demonstrate that she was not a threat to herself or anyone else. The roommate told the officers that a few hours prior, § 87(2)(b) had been in the apartment "screaming and cursing like she always does." In this initial phase of the incident, the officers repeatedly knocked on and spoke through § 87(2)(b) locked bedroom door. However, they received no response.

At 1:50 of his second BWC video (**Board Review 02**), PO Rosario knocked on § 87(2)(b) bedroom door and announced that if the police could not confirm that she was OK then they would have to enter the room without her permission. At 2:00, § 87(2)(b) spoke to the officers for the first time, asking what was going on. Over this same 10-second period, EMTs entered the apartment and stood near the officers. At 3:10, PO Rosario told § 87(2)(b) that if she did not open the door and show the officers that she was OK, then the officers would have to "mess up her door." PO Rosario repeatedly said that the officers could break open the door without a warrant. At 5:55, § 87(2)(b) opened her bedroom door. PO Rosario was the first officer inside the room. Officers immediately handcuffed § 87(2)(b) and escorted her into an ambulance. § 87(2)(b) did not interact with EMTs before getting into the ambulance.

In his interview, PO Rosario said that if there is a potentially armed EDP barricaded behind a door then, by procedure, patrol officers must have ESU secure the scene and get inside. There were no further reasons for the police to potentially force the door open during this incident. The officers handcuffed § 87(2)(b) for the safety of everyone on scene, including the EMTs. PO Rosario said that it is usually police officers' decision to remove someone to the hospital because officers are the ones who interact with civilians on a day-to-day basis. PO Rosario first believed that § 87(2)(b) needed to go to the hospital when the radio run came over at the incident's start.

Under NYPD Patrol Guide Procedure 221-13, an EDP is a person who appears to be mentally ill or temporarily deranged and is conducting himself in a manner which a police officer reasonably believes is likely to result in serious injury to himself or others. 911 dispatchers from the Communications Section are to automatically dispatch ESU to scenes where an EDP may be a threat to themselves or someone else. Patrol officers are obligated to secure the scene and deescalate the situation as best they can while waiting for ESU to arrive. When it is safe to do so, patrol officers should take an EDP into custody and help medical workers transport them to a hospital (**Board Review 23**).

Officers may enter a private residence without a warrant during emergency circumstances where they have reasonable grounds to believe that there is an emergency at hand and an immediate need for their assistance for the protection of life or property, and there is some reasonable basis, approximating probable cause, to associate the emergency with the area or place to be searched. People v. Rodriguez, 77 A.D.3d 280 (2010) (**Board Review 24**).

§ 87(2)(g)

The officers initially received specific

_____ it is therefore recommended that _____

Civilian and Officer CCRB Histories

- § 87(2)(b)
[REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
- PO Rosario has been a member of service for three years and has been a subject in three other CCRB complaints and four other allegations, none of which were substantiated. § 87(2)(g) [REDACTED]
[REDACTED]

Mediation, Civil and Criminal Histories

- This complaint was unsuitable for mediation.
- A FOIL submitted to the NYC Comptroller's Office shows that no Notice of Claim has been filed regarding this incident (**Board Review 26**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 16

Investigator:	Matt Chaves Signature	SI Matt Chaves Print Title & Name	05/25/2022 Date
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Squad Leader:	Patrick Yu Signature	IM Patrick Yu Print Title & Name	05/26/2022 Date
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Reviewer:	 Signature	 Print Title & Name	 Date
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